

TRU professor says he has been suspended for a year due to Facebook post

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Christopher Foulds / Kamloops This Week

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Thompson Rivers University professor Derek Pyne, who teaches in the School of Business and Economics.

A Thompson Rivers University professor who has been at the centre of what he calls a battle over academic freedom says he has been suspended for a year due to comment he posted on Facebook.

Derek Pyne said the university's human resources department told him of his suspension on Thursday, July 16, about a month after he posted a comment on his own Facebook pertaining to a statement on academic freedom by the faculty association of Brock University in Ontario.

On June 10, Pyne's post on Facebook compared Brock University's union's position on academic freedom with that of the TRU Faculty Association:

"Some good news for a change. Unlike Thompson Rivers University Faculty Association, it seems that some university unions are not opposed to academic freedom. One can debate some of the details of the following statement but the bottom line is that it comes out in support of academic freedom, even when it goes against the university, and the union's, positions."

In a second post, Pyne tagged the Federation of Post-Secondary Educators and a number of TRUFA members, two of whom Pyne said complained to the university, claiming being tagged in his post was harassment.

After tagging the group, Pyne added, "Of course, they will end up running to Larry Phillips to defend them as they have done in the past."

Phillips is the human resources director at TRU.

Pyne told KTW he had a video-conference meeting with Phillips, who read to Pyne a four-page letter from TRU president Brett Fairbairn, which explained that Pyne was being suspended for a year, with no pay and no benefits. He said he has also been locked out of accessing his university email account, which contains information he requires.

Pyne said he was told two complainants told the university about being tagged in the Facebook post. Pyne said he was told one complainant claimed to have lost sleep over the post and the other needed time off work to recover from the impact of the post. Pyne argued he simply tagged the people and did not make any comments to or about them.

In a more recent Facebook post, published on July 12, Pyne stated:

"As many know, Thompson Rivers University Faculty Association (TRUFA) has consistently defended Thompson Rivers University (TRU) in the actions they have taken against me. When TRU's HR director says jump, the stewards ask how high when in mid air. It seems that TRU is now returning the favour. TRUFA officials have submitted a harassment complaint to TRU about the post below. TRU's response has been to send me a letter that effectively states that I am not allowed to criticize TRUFA. It seems that there is some

'honor' among thieves, at least to the extent that they work together and return favours to each other. I have informed all parties that I will not stop criticizing TRUFA."

Pyne said he was told by university officials he was not permitted to criticize union officials who have supported TRU in its ongoing issue with him— which he claims centres on academic freedom, a claim the university has rejected.

Suspension is second handed to Pyne

Pyne was first suspended by the university in 2018. He told KTW he was banned from the campus in May of that year and suspended in July for a few weeks due to his research into faculty at TRU and elsewhere paying to have papers published in dubious scholarly journals.

In November 2018, TRU argued Pyne's suspension was not related to his research.

"The discipline imposed is related to matters which I am unable to comment on due to both employment and privacy law," TRU's then-interim president Christine Bovis-Crossen said. However, Pyne said he was indeed suspended because of his research into so-called predatory journals. The research formed a paper, [**The Rewards of Predatory Publications at a Small Business School**](#), which was published by University of Toronto Press Journal of Scholarly Publishing.

Pyne said he was suspended due to the research he included in his feedback on proposed promotions of other TRU instructors, with his feedback including information he found that connected those instructors to having paid for papers to be published in journals.

Pyne resumed teaching in January of this year.

In November 2019, a committee of investigation established by the Canadian Association of University Teachers (CAUT) concluded TRU's administration's actions breached Pyne's academic freedom.

The CAUT committee found that TRU "appears to suffer a broad institutional weakness when it comes to understanding academic freedom."

The committee noted the right of academics to criticize their administration and their institution is a widely recognized feature of academic freedom. However, the committee found that at TRU, there was a failure to understand academic freedom beyond a “narrow application to support faculty members’ freedom to pursue what they expect to be fruitful avenues of research and publish their results.

“Our investigation finds that the TRU administration’s approach in managing workplace complaints against Dr. Pyne failed to properly consider his academic freedom as it applies to his ... criticisms of the School of Business and Economics, its administrators and its faculty,” the committee concluded.

The committee made a number of recommendations, including removing the constraints placed on Pyne’s speech as a condition of his continuing employment as a faculty member.

TRU did not take part in the probe, with administration telling KTW that CAUT does not have authority or jurisdiction to probe issues covered in the collective agreement between the university and the faculty association.

University maintains dispute is not about academic freedom

KTW asked university brass to confirm Pyne’s claim that he has been suspended and, if so, the reasons behind the suspension.

Darshan Lindsay, TRU’s director of executive and government relations, replied with a statement.

“Thompson Rivers University fully supports the exercise of academic freedom. Academic freedom, including the ability to conduct independent research, freely communicate knowledge and the results of research and scholarship, and respectfully debate differences, is core to our university culture,” she said.

“Universities provide significant employment protection for faculty members which is intrinsically tied to them being able to exercise academic freedom. At TRU, this protection is included in our collective agreements with faculty, and includes the freedom to criticize the university. As such, in situations where faculty members have faced discipline, it is not about their academic freedom but rather other issues that have arisen in the workplace. While we cannot provide specific information on personnel matters due to employment

and privacy laws, we want to be clear that matters involving Dr. Pyne are not about the exercise of academic freedom.”

Lindsay added that university employees have various avenues for appeals on employment matters, including through their union and via complaints made through the BC Labour Relations Board.

Pyne has, in fact, filed a complaint with the BC Labour Relations Board, but his complaint was dismissed in July 2019.

Pyne claimed his union, the TRU Faculty breached its duty of fair representation.

In dismissing his complaint, the board noted it did not have jurisdiction under Section 12 of the province’s labour code to determine whether a complainant’s academic freedom rights had been violated. The board said academic freedom rights are a matter for arbitration under the TRU-TRUFA collective agreement.

Pyne unsure of next steps

Pyne said appealing his suspension through his union makes little sense since it was a union executive member and steward who filed the complaint that led to his suspension.

“I’m not positive,” Pyne said when asked what his next step will be.

“I have asked a couple of organizations for advice. This has been sudden, so I don’t know what I am going to do.”